

25SMCV06820 25SMCV06820

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-06-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C06%2F26%2F2026

Source SHA-256: 40d88c1bc3a97501a0c67f1f5d2e21d45674c381ca9b51c329cb7473c219d6a3

Case Number: 25SMCV06820 Hearing Date: June 26, 2026 Dept: 205

Superior Court of
California

County of Los
Angeles – West District

Beverly Hills
Courthouse / Department 205

NEW GLOBAL. PROPERTIES LLC, a California Limited Liability
Company,

Plaintiff,

v.

1301 FIFTH STREET, LLC d/b/a CANARY, a California Limited
Liability Company; WEST END PUB, INC., d/b/a ZANZIBAR, a California
Corporation; NAS NEGAHBAN, an Individual; WEN YEY, an Individual; TRAVIS
SANTOS, an Individual; TROY DONNELL, an Individual; CHARLIE HWANG, an
Individual; and DOES 1 through 10, Inclusive

Defendants.

Case No.: 25SMCV06820

Hearing Date: June 26, 2025

[TENTATIVE] ORDER

RE:

SPECIALLY

APPEARING DEFENDANT

NAS NEGAHBAN'S MOTION

TO QUASH

SERVICE OF SUMMONS

FOR LACK OF

PERSONAL JURISDICTION

BACKGROUND

This action arises out of breach of contract. On December 30, 2025, plaintiff New Global Properties, LLC ("Plaintiff") filed a Complaint against defendant Nas Negahban ("Defendant") and other defendants alleging breach of contract, breach of quasi contract/unjust enrichment, breach of implied covenant of good faith and fair dealing, open book account, accounts stated, and common counts. (See Complaint.)

On April 21, 2026, Defendant was allegedly served, through substituted service, at 1236 Stradella Rd, Los Angeles, California. (See Proof of Service, filed April 23, 2026.) An individual referred to as "John Doe" accepted paperwork on Defendant's behalf. (Ibid.)

This hearing is on Defendant's motion to quash service of process for lack of personal jurisdiction. Defendant argues that service effectuated at 1236 Stradella Rd, Los Angeles, California was improper because Defendant has never resided at the address, has no connection to the location, and has no relation to the individual "John Doe" who accepted summons on Defendant's behalf. (Motion, p. 2.) In Opposition, Plaintiff argues that substituted service was properly effectuated at the publicly available address of Defendant after several attempts to effectuate personal service. (Opposition, p. 3.)

LEGAL STANDARD

Code Civ. Proc. §418.10(a)(1) provides that a defendant may move “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction”. (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) “The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 790.)

To satisfy its initial burden of proof, a “plaintiff must do more than merely allege jurisdictional facts; plaintiff must provide affidavits and other authenticated documents demonstrating competent evidence of jurisdictional facts.” (BBA Aviation PLC v. Superior Court (2010) 190 Cal. App. 4th 421, 428–29 (citing In re Automobile Antitrust Cases (2005) 135 Cal. App. 4th 100, 110). When evaluating the evidence supplied in support of and in opposition to a motion to quash, a trial court is not required to draw all reasonable inferences in favor of the plaintiff because to do so would improperly “lighten plaintiffs’ burden of proof of jurisdictional facts.” (Centerpoint Energy, Inc. v. Superior Court (2007) 157 Cal. App. 4th 1101, 1119.)

DISCUSSION

Defendant argues that the address where service was effectuated is not their address and has never been their dwelling. (Motion, p. 2.) Moreover, Defendant argues the individual who accepted the summons on their behalf is unknown, referred to as “John Doe – co-occupant”, with no relationship to Defendant. (Ibid.) Defendant argues they did not receive notice of this action as a result. (Ibid.) Lastly, Defendant argues that Plaintiff did not exercise reasonable diligence in attempting personal service before resorting to substituted service. Defendant declares that they have never resided at 236 Stradella Rd, that they do not know “John Doe”, and to date they have not been made privy to the allegations in the Complaint. (Negahban Decl., ¶¶ 2-6, 8.)

Defendant's moving papers call into question the validity of Plaintiff's proof of service, which asserts Defendant was served through substituted service with the summons and Complaint. The burden is on Plaintiff to establish effective service.

In opposition, Plaintiff argues that they conducted substituted service after several attempts to personally serve Defendant. Plaintiff argues they were unable to serve Defendant at Defendant's place of business because it is permanently closed. (Opposition, p. 3.) Plaintiff states that they then conducted a search on Lexis+ Public Records for Defendant's address and were supplied with a residential address of 12222 Wilshire Blvd, Apt 312, West Los Angeles, California. (Ibid.) Plaintiff argues that a process server made five separate attempts to serve Defendant at this residence and was unable to make contact with Defendant. (Opposition, pp. 3-4.) Subsequently, Plaintiff states that they conducted a search for Defendant on TruePeopleSearch and were supplied with the 1236 Stradella Rd address. (Opposition, p. 4.) Plaintiff argues that the "John Doe" who accepted service of summons and Complaint fits the publicly available description of Defendant. (Ibid.) Lastly, Plaintiff argues that the mailing address now supplied by Defendant is a commercial mail receiving suite not associated with Defendant, making proper substituted service impossible.

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served... a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address. (Code Civ. Proc., § 415.20 (b).) Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as 'reasonable diligence. (Board of Trustees of Leland Stanford Junior University v. Ham (2013) 216 Cal.App.4th 330, 337.) Here, Plaintiff exercised reasonable due diligence in attempting five times to serve Defendant at the 12222 Wilshire Blvd, Apt 312 residence provided by Lexis+ Public Records. (Nahamou Decl., ¶¶ 4-5, Exh. 1-3.) However, substituted service was not conducted at Defendant's dwelling, usual place of abode, place of business, or usual mailing address. As Defendant declares, substituted service was effectuated at a residence he has no connection to. (Negahban Decl., ¶¶ 2-5.) Plaintiff relied on a third-party website that provided an address for an "N Nas", the absence of a full name or any other identifiers makes it unclear if this

information corresponds to Defendant. (Nahamou Decl., ¶ 6, Exh. 4.) Thus, substituted service was improperly executed.

In sum, because the facts do not support proper substituted service, the Court will quash the service of summons for lack of personal jurisdiction.

CONCLUSION

Based on the foregoing, the Court GRANTS specially appearing Defendant Nas Negahban's motion to quash service of summons for lack of personal jurisdiction.

IT IS SO ORDERED.

DATED: June 26, 2025 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court